Credibility and Reliability Coding

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Overview

This document explains the coding workflow, units, and recording procedures. Read it before the codebook, which defines individual criteria, boundaries, Findings, and examples.

Important:

Code only the court's credibility/reliability assessments, not descriptions of events, reproduced party statements, or background circumstances that the court does not evaluate as credibility/reliability considerations.

Skiljaktig mening / Divergent opinion:

These are not to be coded at this stage. While important, they will come in at a later stage in the project. Ignore them for now, even if they contain credibility/reliability assessments.

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1. Coding taxonomy at a glance

Level	Variable/aspect	Possible response	Type
Document	Credibility/reliability assessment present?	Present / Not present	Categorical
Document	Acceptance of complainant's account / prosecution's case	Fully accepted / Partially accepted / Not accepted / Insufficient evidence / Unclear	Categorical
Block	Assessment Focus	Direct assessment / Supporting or contradicting evidence / Overall synthesis / Other relevant assessment	Categorical; one per block
Assessment	Criterion	One or more criteria from substantive taxonomy	Categorical; multi-label
Assessment	Finding	Additional information about the criterion	Categorical; multi-select where applicable
Assessment	Person role	Complainant / Defendant	Categorical
Assessment	Person ID	01 / 02 / 03 / etc.	Within-document identifier
Assessment	Relevant charge	Rape / Non-rape / Both-all / Unclear	Categorical
Assessment	Valence	Positive / Negative / Mixed / Ambiguous / Irrelevant	Categorical
HR only	HR reasoning status	Own / Agreement-Adoption / Modification-Rejection / Other-Unclear	Categorical
Development/QC	Notes	Coder uncertainty, taxonomy problems, unusual cases	Optional free text

The components have distinct units and purposes. See Codebook v3 for detailed definitions, boundaries, and examples.

2. General inclusion rule

Code a criterion when the court uses a characteristic, circumstance, or consideration to evaluate a person's credibility, reliability, truthfulness, or the evidentiary value of their account.

- **Explicit or contextual connection:** The court need not explicitly state the implication for credibility/ reliability if the evaluative connection is identifiable from surrounding reasoning. This includes evaluations of supporting or contradicting evidence.

- **Exclude mere description:** Do not code event narratives, reproduced statements, or presentation of evidence without an identifiable evaluative function.
- **Proximity is insufficient:** Do not infer a connection simply because evidence appears near credibility reasoning or could potentially corroborate an account. It needs to be identifiable from surrounding reasoning.
- **Court's reasoning only:** Arguments by other parties qualify only when the court adopts or evaluates them.

3. Document-level coding — Assessment Presence

Every completely reviewed ruling must receive a document-level code indicating whether any qualifying credibility/reliability assessment was identified.

Credibility/reliability assessment present:

- Present
- Not present

Not present means that the entire relevant ruling has been reviewed and no qualifying credibility/reliability assessment was identified. It must not be used for documents that have not yet been completely reviewed.

Exclusions:

If a ruling is not eligible for coding, record "Excluded" at the beginning of the document's coding sheet and briefly state the reason for exclusion.

Only one exclusion entry is required per ruling. Excluded rulings should not be coded as "Not present", since this category is reserved for eligible rulings that have been reviewed but contain no qualifying credibility/reliability assessments.

4. Document-level coding — Evidentiary Acceptance

Variable: `account_evidentiary_acceptance`.
Level: Document.
Coding unit: One assessment per complainant per ruling. A ruling involving multiple complainants may therefore receive multiple classifications.

Record the extent to which the court accepts the complainant's account of the alleged rape or considers the prosecution's case established. Distinguish explicit rejection of the account (**Not accepted**) from an unmet evidentiary threshold without such rejection (**Insufficient evidence**), whether due to the account, other evidence, or both.

Categories: 1 Fully accepted; 2 Partially accepted; 3 Not accepted; 4 Insufficient evidence; 5 Unclear / cannot be determined.

Include rape-related assessments only (including other charges assessed jointly with rape). Do not equate acceptance with conviction or infer this variable from D2, Valence, or the verdict. Flag conflicting outcomes across multiple allegations involving one complainant in Notes for pilot review.

For definitions and boundaries, see Codebook v3 — Part I.

5. Block-level coding — Assessment Focus

Variable: `assessment_focus`.
Unit: One classification per included text block.

Record the primary function of the court's reasoning, rather than every criterion mentioned in the block.

Categories: 1 Direct credibility/reliability assessment; 2 Assessment of supporting/contradicting evidence; 3 Overall/synthesizing assessment; 4 Other relevant assessment (Note required).

All assessment rows referring to the same block receive the same focus code. Use surrounding context where necessary. Assess the primary function of each block separately when an assessment spans blocks; functions may differ. **When a sentence or continuous assessment is split across blocks solely by a page break, assign the same Assessment Focus to both blocks.** Flag unresolved ambiguity in Notes. The presence of evidence does not automatically imply focus Code 2.

For detailed boundaries and judicial examples, see Codebook v3 — Part II.

6. Assessment-level coding

For each distinct criterion assessment, record Criterion, Finding(s), Person role, Person ID, Relevant charge, Valence, and HR reasoning status (where applicable). Different criteria require separate entries, even within the same passage. Section 8 specifies when multiple Findings can share an entry.

6.1 Criteria

Type: Categorical

Select every substantive credibility/reliability criterion the court applies. See the codebook for definitions and criterion-specific rules.

6.2 Finding

Type: Categorical; multi-select where applicable

Record what the court finds about the criterion, using its criterion-specific Finding categories in the codebook. Multiple Findings may share one assessment **only when they have the same Valence**; Findings with different Valences require separate assessments (Section 8).

If no Finding fits adequately, use Notes to explain the difficulty; do not force an incorrect classification.

6.3 Person role

Type: Categorical

Record whose account is being assessed. Choose:

- Complainant
- Defendant

6.4 Person ID

Type: Within-document identifier

This distinction is only applied to rulings containing multiple complainants or defendants. It records which complainant or defendant the assessment concerns.

This should follow the order in which the complainants/defendants are named at the beginning of the document. Meaning, the first complainant mentioned becomes 01, the second becomes 02 and so on.

Do not independently invent a different numbering system!

6.5 Relevant charge

Type: Categorical

Record whether the person/assessment is connected to the rape charge or another charge in the ruling.

Choose:

- **Rape** When the credibility assessment concerns the rape charge. This includes when rape/negligent rape is the only charge in the ruling.

- **Non-rape** When the credibility assessments concerns another charge than rape. This applies only to rulings with more charges than rape/negligent rape.
- **Both/all** When the credibility/reliability assessment concerns more than one charge simultaneously, including at least one rape/negligent rape and one non-rape charge. This applies only to rulings with more charges than rape/negligent rape.
- **Unclear** When it is unclear which of the charges the assessment seems to concern. This applies only to rulings with more charges than rape/negligent rape.

6.6 Valence

Type: Categorical

Valence records the direction of the court's credibility/reliability assessment. This direction may be explicitly stated or inferred from the criterion being evaluated and its meaning within the court's reasoning.

- **Positive:** The assessment strengthens the credibility/reliability or evidentiary value of the person's account.
- **Negative:** The assessment weakens the credibility/reliability or evidentiary value of the person's account.
- **Mixed:** A single assessment has both positive and negative implications for credibility/reliability. Do not use Mixed merely to combine different Findings with different Valences; record those separately (Section 8).
- **Ambiguous:** The information in the court ruling itself is genuinely ambiguous regarding the direction of the assessment.
- **Irrelevant / No effect** The court explicitly considers a criterion but concludes that it does not affect the credibility/reliability or evidentiary value of the person's account.

Coding rules:

- **Finding versus Valence:** Finding records what the court establishes concerning a criterion, while Valence records how the court evaluates that finding in relation to credibility/reliability. The two must be coded independently. The same Finding can have different Valence classifications depending on the court's reasoning.
- **Court's evaluation takes precedence:** Assign Valence based on how the court evaluates the criterion, considering both explicit statements and surrounding context. Do not automatically assign Positive or Negative Valence based on the Finding alone.
- **Conventional interpretation:** When the court identifies a criterion without indicating its implications, assign Valence according to its generally recognized meaning in judicial credibility assessments (e.g., NJA 2010, s. 671). For example, a detailed account is conventionally considered positive for credibility. However, conventional interpretations must never override the court's actual evaluation. For criteria without a clear conventional interpretation, Valence must be established from the court's reasoning.
- **Ambiguous vs. coder uncertainty:** Use Ambiguous only when the direction genuinely cannot be established from the ruling. Record uncertainty about a coding decision in Notes.
- **Ambiguous vs. Irrelevant / No effect:** Do not confuse Irrelevant / No effect with Ambiguous. Irrelevant means the court explicitly indicates that the criterion has no effect, whereas Ambiguous means that the direction of the assessment cannot be established.

Example:

"The account was detailed, long and clear."

→ **Positive**, even without an explicit statement that these characteristics strengthen credibility, because they are generally treated as positive indicators in judicial credibility assessments.

Important: Valence reflects the implications of the court's assessment, not whether the account is ultimately accepted or rejected. An individual criterion may receive Positive valence even when the court's overall credibility judgment is negative.

6.7 HR reasoning status

Type: Categorical

Credibility/reliability assessments in appellate court rulings receive an additional code describing the relationship between the HR's reasoning and the TR's reasoning.

- **Own**: The HR makes the assessment without referring to the TR's assessment.
- **Agreement/Adoption:** The HR explicitly engages with a criterion or assessment made by the TR and agrees with it.
- **Modification/Rejection:** The HR engages with a criterion or assessment made by the TR but modifies or rejects the TR's assessment.
- **Other/Unclear:** The HR's reasoning genuinely cannot be adequately represented by the three categories above.

Other/Unclear should not be selected because the coder is uncertain. Coder uncertainty should instead be explained in Notes.

7. Notes

Type: Optional free text

Use Notes to explain coder uncertainty, exceptional cases, and coding problems (including person, charge, Finding, or Valence ambiguities). State briefly what is uncertain and why. Straightforward assessments do not require Notes; follow any mandatory Notes instructions for specific categories.

8. Repeated and multiple assessments

- **Different criteria:** Record separate assessments, even when they occur in the same sentence or block.
- **Same criterion, multiple Findings with the same Valence:** Record one criterion assessment with all applicable Findings.
- **Same criterion, Findings with different Valences:** Record separate assessments, grouping only Findings that share a Valence. Do not combine them under Mixed solely because their Valences differ.
- **Repeated assessments:** Code each genuinely new instance of a credibility/reliability assessment, even if the criterion appeared earlier; do not duplicate a mere summary of an assessment already coded.
- **Criterion-specific units:** Follow the codebook. For B3, code each evidence source separately, including individual witnesses evaluated collectively; separately code substantively new evaluations of the same source.

9. Assessments spanning multiple paragraphs or blocks

When encountering an assessment that spans multiple blocks, note down all blocks that the assessment contains. Assessment Focus is coded for each included block, and blocks with genuinely different primary functions may receive different focus categories.

An assessment may span multiple blocks when the court's evaluation of a single criterion begins in one block and continues into another. In such cases, record all blocks belonging to that assessment as one coding entry.

If different criteria are evaluated across the blocks, create separate entries for each criterion.

- **Assessment spans two or more subsequent blocks:** Write it as 30-32.
- **Assessment spans two more blocks with heading/footer blocks in between:** Write it as 30;32, where block 31 just contains a heading/footer and is thus not included.